At the Family Court of the State of New York, held in and for the County of Westchester, at the Courthouse located at 131 Warburton Avenue, Yonkers, New York 10701, on the _____ day of November, 2021.

PRESENT:

MICHELLE I. SCHAUER, F.C.J.

----------X

TARA KATELYN WALSH,

Petitioner,

-against-

STEPHEN GRANT RUSSELL,

Respondent.

----------X

ORDER ON DEFAULT

File No. 154703

Docket Nos. V-07641-18/21Z; V-05280-21/21A; O-12635-19/21K

Hon. Michelle I. Schauer

WHEREAS, the Petitioner, Tara Katelyn Walsh, and Respondent, Stephen Grant Russell, are the parents of [redacted] date of birth [redacted] ("Child"); and

WHEREAS, the court-appointed Attorney for the Child, Donna M. Genovese, Esq., initiated an Order to Show Cause dated October 14, 2021 ("Order to Show Cause") requesting, *inter alia,* that: (i) Respondent, Stephen Grant Russell, and/or any persons, entities and/or agents acting on his behalf be restrained from posting, uploading blogs and displaying the likeness of [redacted] (i.e. photographs, animations, screen shots, drawings and the like) and disparaging [redacted] relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and (ii) Respondent and/or any persons, entities and/or agents acting on his behalf be restrained from recording any visits between [redacted] and Respondent and/or Linda Russell; and the Court having granted such interim relief; and

Public copy: the child's legal name is shown as E.V.; dates of birth are removed. Otherwise unchanged.

WHEREAS, Respondent, Stephen Grant Russell, *pro se,* counsel for Petitioner, Christopher S. Weddle, Esq., and counsel for Linda Russell, Max DiFabio, Esq. were served with the Order to Show Cause and the affidavits of service were filed with the Court on October 22, 2021; and

WHEREAS, the Order to Show Cause directed that opposition papers, if any, were due to be served on or before October 29, 2021 and that an in-person court appearance was required on November 5, 2021; and

WHEREAS, no opposition papers were filed with the Court regarding the Order to Show Cause; and

WHEREAS, the Attorney for the Child, Donna M. Genovese, Esq., of Goldschmidt & Genovese, LLP, Petitioner, Tara Katelyn Walsh, and Attorney for Petitioner, Christopher S. Weddle Esq. of Timko & Moses, LLP, Linda Russell and Attorney for Linda Russell, Max Di Fabio, Esq. of Di Fabio & Associates, P.C. having appeared before the Hon. Michelle I. Schauer on November 5, 2021 for the Order to Show Cause and Respondent, Stephen Grant Russell, *pro se,* not having appeared on such date; and

WHEREAS, the Court having heard the Order to Show Cause on November 5, 2021; it is hereby

ORDERED, that, on default, Respondent, Stephen Grant Russell, and/or any persons, entities and/or agents acting on his behalf is restrained from posting, uploading blogs and displaying the likeness of [redacted] (i.e. photographs, animations, screen shots, drawings and the like) regarding the above-captioned proceedings and proceedings under Docket No. V-7641-18/21AA initiated by Linda Russell and restrained from the disparagement of [redacted] relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and it is further

ORDERED, that, on default, Respondent, Stephen Grant Russell, and/or any persons, entities and/or agents acting on his behalf are restrained from recording any visits between E.V. [redacted] and Respondent and/or Linda Russell.

ENTER:

MICHELLE I. SCHAUER, F.C.J.

At the Family Court of the State of New York, held in and for the County of Westchester, at the Courthouse located at 131 Warburton Avenue, Yonkers, New York 10701, on the _____ day of November, 2021.

P R E S E N T: **MICHELLE I. SCHAUER, F.C.J.**

FAMILY COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

----------X

LINDA RUSSELL,

Petitioner,

-against-

TARA KATELYN WALSH,

Respondent.

----------X

ORDER ON CONSENT

File No. 154703

Docket No. V-7641-18/21AA

Michelle I. Schauer, J.F.C.

WHEREAS, Tara Katelyn Walsh and Stephen Grant Russell are the parents of E.V., [redacted] date of birth [redacted] ("Child"); and

WHEREAS, Petitioner, Linda Russell, is the paternal grandmother of the Child; and

WHEREAS, the court-appointed Attorney for the Child, Donna M. Genovese, Esq., initiated an Order to Show Cause dated October 14, 2021 ("Order to Show Cause") requesting, *inter alia,* that: (i) Petitioner, Linda Russell, and/or any persons, entities and/or agents acting on her behalf be restrained from posting, uploading blogs and displaying the likeness of E.V. [redacted] (i.e. photographs, animations, screen shots, drawings and the like) and disparaging E.V.'s [redacted] relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and (ii) Petitioner, Linda Russell, and/or any persons, entities and/or agents acting on her behalf be restrained from recording any visits between E.V. [redacted] and Stephen Grant Russell and/or Petitioner, Linda Russell; and the Court having granted such interim relief; and

WHEREAS, Stephen Grant Russell, *pro se,* counsel for Tara Katelyn Walsh, Christopher S. Weddle, Esq., and counsel for Linda Russell, Max DiFabio, Esq. were served with the Order to Show Cause and the affidavits of service were filed with the Court on October 22, 2021; and

WHEREAS, the Order to Show Cause directed that opposition papers, if any, were due to be served on or before October 29, 2021 and that an in-person court appearance was required on November 5, 2021; and

WHEREAS, no opposition papers were filed with the Court regarding the Order to Show Cause; and

WHEREAS, the Attorney for the Child, Donna M. Genovese, Esq., of Goldschmidt & Genovese, LLP, Respondent, Tara Katelyn Walsh, and Attorney for Respondent, Christopher S. Weddle Esq. of Timko & Moses, LLP, Petitioner, Linda Russell and Attorney for Linda Russell, Max Di Fabio, Esq. of Di Fabio & Associates, P.C. having appeared before the Hon. Michelle I. Schauer on November 5, 2021 for the Order to Show Cause and Stephen Grant Russell, *pro se,* not having appeared on such date; and

WHEREAS, the Court having heard the Order to Show Cause on November 5, 2021; it is hereby

ORDERED, that, on consent, Petitioner, Linda Russell, and/or any persons, entities and/or agents acting on her behalf is restrained from posting, uploading blogs and displaying the likeness of E.V. (i.e. photographs, animations, screen shots, drawings and the like) regarding the above-captioned proceedings and proceedings under Docket Nos. V-7641-18/21Z, V-05280-21/21A and O-12635-19/21K and restrained from the disparagement of E.V.'s relatives in any and all public forums and/or social media platforms; and that the existing postings, blogs and likenesses be erased, deactivated and deleted; and it is further

ORDERED, that, on consent, Petitioner, Linda Russell, and/or any persons, entities and/or agents acting on her behalf are restrained from recording any visits between [redacted] E.V. and Stephen Grant Russell and/or Petitioner, Linda Russell.

ENTER:

MICHELLE I. SCHAUER, F.C.J.